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**EXECUTIVE OFFICE FOR IMMIGRATION REVIEW, LOS ANGELES
IMMIGRATION COURT**

In re Pineda

Case No. A238-973-296

**COMPLAINT FOR DAMAGES AND
DEMAND FOR JURY TRIAL**

IJ Sunita Raghavan
Courtroom 8

Plaintiff Pineda, Rafael alleges as follows:

1. This action arises from asylum application (form i-589) involving U.S. Department of Homeland Security, which occurred on or about August 5, 2024.
2. Venue is proper in this Court under Code of Civil Procedure section 395 because the obligations and injuries alleged occurred in the County of Los Angeles.
3. Defendant U.S. Department of Homeland Security is represented in this matter by Office of the Chief Counsel, U.S. Immigration and Customs Enforcement.
4. This action is timely under INA 208(a)(2)(B) (1 year from arrival); the limitations period runs through August 5, 2025.

FIRST CAUSE OF ACTION — Asylum Application (Form I-589) - Relief Requested

5. Plaintiff incorporates each preceding paragraph as though fully set forth here. Plaintiff has been damaged in a sum within the unlimited jurisdiction of this Court, to be established according to proof.

SECOND CAUSE OF ACTION — Declaratory Relief (Code Civ. Proc. 1060)

6. The foregoing allegations are realleged and incorporated by reference. Plaintiff has been damaged in a sum within the unlimited jurisdiction of this Court, to be established according to proof.

PRAYER FOR RELIEF

WHEREFORE, plaintiff prays for general and special damages according to proof, prejudgment interest, costs of suit, and such other relief as the Court deems just.

Dated: February 3, 2025

Alvarado & Sung LLP

By: _____

Miguel Teran

Attorneys for Pineda, Rafael